

second cause of action for negligence is sustained with leave to amend. The Demurrer as the fourth, fifth, and sixth causes of action for Equitable Indemnity causes of action are overruled.

4. 9:00 AM CASE NUMBER: C23-02955

CASE NAME: NATALIE SCHULTZ VS. BLACKHAWK PLASTIC SURGERY, ET AL.

*HEARING ON MOTION IN RE: SEAL THE INDEX OF EXHIBITS/DECLARATION OF DENISE BILLUPS-SLOANE IN SUPPORT OF MOTION FOR SUMMARY JUDGMENT FILED ON JULY 24, 2025

FILED BY: SCHULTZ, NATALIE

TENTATIVE RULING:

Summary

Plaintiff Natalie Schultz's Motion to Seal the Index of Exhibits is unopposed and is **granted**. No appearance is required at the hearing on April 22, 2026.

Analysis

On December 22, 2025, Plaintiff Natalie Schultz filed a Motion to Seal the Index of Exhibits, which was supported by Notice, Memorandum of Points and Authorities, the Declaration of Counsel Denise Billups-Sloane in Support of Motion for Summary Judgment or in the Alternative Summary Adjudication filed on July 24, 2025, the Declaration of counsel Michael S. Biggs, and a proposed order. The Proof of service demonstrating service of this Motion by electronic mail to counsel for Defendants, Dr. Stephen J. Ronan MD and Blackhawk Plastic Surgery ("Defendants") was filed on December 31, 2025.

Plaintiff seeks to seal the entire index of exhibits, or, in the alternative specifically, Exhibits B, C, D, E, and G of the Index of Exhibits to the Declaration of Denise Billups-Sloane in Support of Motion for Summary Judgment or in the Alternative Summary Adjudication because they contain Plaintiff's private medical records and information that is confidential and protected under applicable privacy laws, including but not limited to the Health Insurance Portability and Accountability Act (HIPAA) and California Constitution, Article I, Section 1. Plaintiff claims that the records were submitted solely to support the Defendants' motion and are not otherwise publicly available. Plaintiff asserts that given the highly personal nature of the medical information contained in the declaration, public disclosure would result in a significant invasion of the plaintiff's privacy and potential harm.

No timely opposition was filed by the Defendants.

Analyses

California courts recognize that a party's failure to file opposition supports treating the motion as unopposed and may be construed as a concession or abandonment of any argument against the requested relief. See e.g., *Sexton v. Superior Court* (1997) 58 Cal. App. 4th 1403, 1410 (noting local rule providing that failure to timely file opposition "creates an inference that the motion or demurrer is meritorious"); *Herzberg v. County of Plumas*, (2005) 133 Cal. App. 4th 1, 20 (failure to oppose may be construed as abandonment of the issues). Indeed, in this Court, "[f]ailure to comply with the requirements concerning filing and serving opposing and reply papers may, in the discretion of the court, be deemed cause for acting on the matter without consideration of the document filed in violation of requirements and may be deemed cause for imposing sanctions." See

<https://contracosta.courts.ca.gov/divisions/civil/motions-and-hearings>.

Applied here, the Court finds that Defendants' choice to not timely oppose this Motion to Seal is a deemed to be their consent to the granting of the motion. Accordingly, the Court finds good cause to grant this motion.

Ruling

1. Plaintiff's Motion to Seal is **granted**. The Court will execute and file the proposed order lodged on December 22, 2025, and specifically, the option that appears on page 2, lines 13-17 of the proposed order.
2. No appearance is required at the hearing of this Motion on April 22, 2026.

5. 9:00 AM CASE NUMBER: C23-03034

CASE NAME: VICTORIA PLUMLEE VS. JERRY MCLAUGHLIN, MD

***HEARING ON MOTION IN RE: ALLOW SERVICE OF DEF JERRY MCLAUGHLIN M.D. BY EMAIL**

FILED BY: PLUMLEE, VICTORIA

TENTATIVE RULING:

Plaintiff, Victoria Plumlee, moves for an order permitting email service of defendant, Jerry McLaughlin, M.D. pursuant to Code of Civil Procedure, § 413.30 (a)(1).

That statute provides:

If no provision is made in this chapter or other law for the service of summons, or if a plaintiff, despite exercising reasonable diligence, has been unable to effect service of the summons by any of the methods authorized under this chapter, the court in which the action is pending may, upon motion, direct that summons be served in a manner that is reasonably calculated to give actual notice to the party to be served, including by electronic mail or other electronic technology, and that proof of such service be made as prescribed by the court.

(Code Civ. Proc., § 413.30 (a)(1).)

Plaintiff, in support of the motion, provides very little in terms of analysis as to how this statute applies to this case. Besides describing two failed mailing attempts, she does not describe efforts to serve the summons via other forms of permitted service. On this record, plaintiff fails to show "reasonable diligence" to effect service of the summons by another method "authorized under [Chapter 4 of Part 2, Title 5 of the Code of Civil Procedure (entitled "Service of Summons"))." As further pointed out in the opposition filed by Stanford Health Care, a website appearing to relate to defendant Dr. McLaughlin's art identifies his home as being in Mexico. (Request for Judicial Notice in Support of Opposition, Ex. 3-4.)

Printouts submitted by plaintiff in support of the motion are from the same website, suggesting plaintiff is aware of the content of that website. (See Declaration of Robert G. Schock, Ex. F.) Notwithstanding plaintiff's awareness, she makes no attempt to show why the requirements for service of a defendant outside the United States should not be complied with. (See Code Civ. Proc., § 413.10 (c) [describing requirements for serving defendant in another country as being subject to "the law of the place where the person is served or as directed by the foreign authority in response to a letter rogatory," and further noting that the rules are "subject to" the provisions of the Hague Service